



Rule 2.86—Form 3: Application to Expunge Public Intoxication Court Records under Iowa Code section 123.46

If you do not understand how to use this form, or if you are unsure whether you should use this form, talk to an attorney.

In the Iowa District Court for Johnson **County**

County where you are filing this Application

State of Iowa or _____

vs.

Avery Jordan Example

Defendant

Case no. EXAMPLE-INT-LATER

**Application to Expunge Public
Intoxication Court Records under Iowa
Code section 123.46**

If you need assistance to participate in court due to a disability, call the disability coordinator (information at www.iowacourts.gov/for-the-public/ada). Persons who are hearing or speech impaired may call Relay Iowa TTY (1-800-735-2942). **Disability coordinators cannot provide legal advice.**

Defendant respectfully applies to the court for an order expunging the court records in the above-captioned case pursuant to Iowa Code section 123.46(6). In support of this application, Defendant acknowledges that the following statements are true and correct to the best of Defendant's knowledge:

Read, complete, and check each item if you agree.

1. ☒ Defendant was convicted for a violation of Iowa Code section 123.46, consumption or intoxication in public places, or of a similar local ordinance on:
January 15, 2022
Month Day Year
2. ☒ Defendant has had no criminal convictions other than local traffic violations or simple misdemeanor violations under Iowa Code chapter 321 during the two-year period following the conviction.

Read Before Signing

Please check each statement below after you have read it.

- ☒ **I understand** that I must provide a copy of this application to the county attorney.
- ☒ **I understand** that the records in a criminal case expunged under this section are confidential and exempt from public access under Iowa Code section 22.7. The record shall not be accessible except by court order.

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Iowa public intoxication: next steps

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1. This packet and the correct route

For Avery Jordan Example, Johnson County, existing case EXAMPLE-INT-LATER. The first two pages are official August 2024 Rule 2.86 Form 3; page 2 includes the paper-service certification. These instructions are not filed. No proposed order, notarization, DCI request, billing form or returned history report is required in this packet.

This is the public consumption/intoxication conviction route, not a dismissal, deferred judgment or general misdemeanor application. Your supplied offense is 123.46(2). Verify the existing case and original caption.

SYNTHETIC EXAMPLE - DO NOT FILE. All participant names, identifiers, case facts and Example ordinance labels are fictional test inputs, not real court records.

2. Check the dates and intervening convictions

Conviction: 2022-01-15. Two-year anniversary: 2024-01-15. Intended filing: 2026-09-07. The clock starts at conviction, not sentence completion. Recheck the facts on the actual filing date.

The two-year period following conviction must contain no other criminal conviction except a local traffic violation or a simple misdemeanor under chapter 321. Not all driving offenses are exceptions: an OWI or chapter 321J charge is not automatically exempt. A later conviction outside the fixed two-year window does not restart this particular clock.

You reported these later convictions: 2025-01-01, 714.2(5), reported category other. Review each category; the generator does not authenticate your history.

Stop for legal assistance if the history is incomplete, a conviction or its category is disputed, or a conviction occurred on a timing boundary that requires a legal determination.

3. Review, complete and sign

Item 1 is checked only from your express conviction confirmation. Verify its date and ground; untrue or uncertain declarations must be corrected before signing.

Review every checked statement and acknowledgment. Check representation election A on page 2, enter the actual signing date and sign under penalty of perjury. The printed name is not a signature. Leave attorney block B blank. Use a permitted digitized signature or print and hand-sign as the source directs. No notary block is added.

DO NOT FILE YET. Complete these known-to-be-missing areas: Prepared paper-service sender full name. Unknown values are blank, not filled or waived.

4. File in the existing case and provide notice

File this application in the existing Johnson County district-court case, not a new case in your county of residence. Keep a copy. The Johnson County Clerk of Court is at 417 South Clinton Street, Iowa City, IA 52240; telephone 319-356-6060. Confirm current filing arrangements before visiting or mailing.

Paper filing selected. Use paper only when permitted, including when the case cannot be found in eFile as the form directs. File with the county clerk of court; mail or hand-deliver a copy to that county attorney. Enter the real service date on page 2 only after delivery or mailing, and follow clerk instructions for returning the completed certification.

Intended recipient supplied: Johnson County Attorney, 500 S. Clinton Street, Suite 400, Iowa City, IA 52244-2450. Confirm the current address. Prepared recipient fields do not certify that service occurred.

Under Rule 2.83, the county attorney generally has 20 days after service to respond unless the court orders otherwise. A hearing may be set. Follow all notices; silence is not an expungement order. Opposition or a contested hearing is a self-help stopping point.

Iowa public intoxication: next steps

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5. Costs and effect of a court order

Payment of court debt is not a precondition on this route under Rule 2.83(3). You reported court debt as unpaid. This application does not forgive debt or convert unpaid amounts into paid amounts.

University of Iowa Student Legal Services states there is no filing fee for an expungement request. Confirm case-specific charges with the clerk. Postage/copies may cost money. No application-fee election or invented fee-waiver form is included.

Using this separate alcohol route does not use the once-per-lifetime section 901C.3 misdemeanor expungement. The court decides the application. Keep the signed order and verify that the clerk has made the court record confidential; it is not destroyed and court-authorized access remains possible.

Section 123.46(6) directs DPS to remove the conviction from its criminal-history data, if maintained there, after clerk notice of the expungement. An application alone does not do that. Check the order and clerk notice; no promise is made about every police or private background-check database.

Seek an attorney or legal aid for opposition, contested factual issues, an incorrect remedy, immigration consequences or another problem outside this self-help application. Do not miss a court deadline while seeking help.

Sources and official assistance

Iowa Code 123.46(6) (2026); Rule 2.86 Form 3 August 2024; Iowa Rules 2.82, 2.83 and 2.84. Read your official form and court notices. These instructions do not replace legal advice.

<https://www.iowacourts.gov/browse/files/8a0a8591f13f4c068f8502b0d8d32ebb/download>

<https://www.legis.iowa.gov/docs/code/2026/123.46.pdf>

<https://www.iowacourts.gov/efile>

<https://studentlegal.uiowa.edu/know-the-law/criminal-law/expungement>